

Vendor Disclosure & Contract Checklist — New South Wales

Your obligations as a seller — get this wrong and buyers can walk away, even after exchange.

Correct as at July 2026. General information only, not legal advice. Your Contract of Sale must be prepared by a solicitor or licensed conveyancer — this checklist helps you gather what they'll need, not replace their advice.

Section 1 — Understanding Your Disclosure Obligation

- ☐ [] **Know the Contract of Sale must be prepared before your property is listed** — in NSW, this is the vendor's obligation, not something assembled after a buyer is found.
- ☐ [] **Understand your solicitor or conveyancer prepares the contract**, but you are responsible for the accuracy of the underlying information you provide to them.
- ☐ [] **Know the consequences of an inadequate contract**. Missing or defective disclosure can allow a buyer to rescind or create grounds for dispute after exchange — get it right from the outset rather than treating this as a formality.

Section 2 — Information to Gather for Your Solicitor/Conveyancer

- ☐ [] **Title details** — current title search.
- ☐ [] **s10.7 planning certificate** — obtained from council, disclosing zoning, heritage listings, flood/bushfire risk, and any known planning restrictions.
- ☐ [] **Mortgages and charges** on the property.
- ☐ [] **Easements, covenants and restrictions**, both registered and any you're aware of.
- ☐ [] **Home Building Compensation Fund (HBCF) certificate**, if residential building work over \$20,000 has been carried out in the past 6 years.
- ☐ [] **Sewer service diagram** and details of connected services.
- ☐ [] **Strata records**, if applicable — recent AGM minutes, financials, sinking fund details, and known disputes or special levies.
- ☐ [] **Any known defects or issues** you're aware of, even if not immediately obvious — full and frank disclosure protects you from post-settlement disputes.

Section 3 — Underquoting & Price Transparency Obligations

- ☐ [] **Understand your agent's legal obligation**. Under the Property and Stock Agents Act 2002, your agent must provide a genuine, reasonable estimated selling price in your agency agreement, supported by comparable sales, and must revise it as required — this is a legal obligation on the agent, not just good practice.
- ☐ [] **Don't ask your agent to advertise a misleadingly low price to generate interest**. Beyond the ethical issue, this is precisely the conduct underquoting protections (maximum penalty **\$22,000**) are designed to prevent, and it creates real risk for both you and your agent.
- ☐ [] **Keep records of price guide discussions with your agent** — the agency agreement should document the estimated price and any revisions.

Section 4 — Auction-Specific Considerations

- ☐ [] **Understand there's no cooling-off period for the buyer once the hammer falls** at auction — ensure your Contract of Sale is genuinely finalised well before auction day.
- ☐ [] **Confirm your agent's auction marketing complies with underquoting rules**, including the price guide displayed.

Section 5 — Final Checks Before Going to Market

- ☐ [] **Confirm your Contract of Sale is complete and reviewed by your solicitor** before your first open home.
- ☐ [] **Cross-check the contract against your own knowledge of the property** — flag any inconsistency with your solicitor immediately.
- ☐ [] **Keep a copy of everything provided to buyers** — useful protection if a dispute arises after settlement.

Quick Reference — NSW Vendor Disclosure Essentials

Requirement	Key Detail
Contract of Sale	Prepared by vendor's solicitor/conveyancer, before listing
s10.7 planning certificate	Zoning, heritage, flood/bushfire risk disclosure
HBCF certificate	Required for building work over \$20,000 in past 6 years
Underquoting prohibition	Maximum penalty \$22,000, governed by Property and Stock Agents Act 2002
Auction cooling-off	None, for either party, once the hammer falls

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